



E. Insurance, Indemnification & Hold-Harmless Agreement

Purpose: *Shifts the risk of the Subcontractor's own work onto the Subcontractor.*

1. Independent Responsibility. Subcontractor is responsible for its own work, workers, tools, vehicles, and safety. Company is not responsible for injury to Subcontractor's personnel or for Subcontractor's acts or omissions.

2. INDEMNITY (LIMITED FORM). TO THE FULLEST EXTENT PERMITTED BY LAW, INCLUDING CHAPTER 151 OF THE TEXAS INSURANCE CODE, SUBCONTRACTOR SHALL INDEMNIFY, DEFEND, AND HOLD HARMLESS COMPANY AND ITS OFFICERS, MEMBERS, AND EMPLOYEES FROM AND AGAINST ALL CLAIMS, DAMAGES, LOSSES, AND EXPENSES (INCLUDING REASONABLE ATTORNEYS' FEES) FOR BODILY INJURY, DEATH, OR PROPERTY DAMAGE, BUT ONLY TO THE EXTENT CAUSED BY THE NEGLIGENCE, FAULT, OR BREACH OF SUBCONTRACTOR OR ITS OFFICERS, EMPLOYEES, AGENTS, OR LOWER-TIER SUBCONTRACTORS. THIS OBLIGATION DOES NOT EXTEND TO CLAIMS CAUSED BY COMPANY'S OWN NEGLIGENCE OR FAULT.

3. EMPLOYEE-INJURY PROVISION. AS PERMITTED BY § 151.103, FOR CLAIMS OF BODILY INJURY OR DEATH OF SUBCONTRACTOR'S OWN EMPLOYEES, AGENTS, OR LOWER-TIER SUBCONTRACTORS, SUBCONTRACTOR'S INDEMNITY APPLIES REGARDLESS OF ANY ALLEGED CONCURRENT NEGLIGENCE OF COMPANY.

4. Insurance Required (if applicable). Where Subcontractor carries or is required to carry insurance, it maintains the limits in Form F, names Company as additional insured on its CGL (to the extent permitted by Ch. 151), and provides waiver of subrogation where allowed.

5. No Limit by Insurance. Subcontractor's indemnity is not capped by its insurance limits, but nothing here requires indemnity broader than Texas law allows.

6. Survival. This Form survives completion of work and termination.

Subcontractor

Signature: _____

Printed name: _____ Title: _____

Company: _____ Date: _____